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Athens, 26-08-2024

Protocol No.: 2242

DECISION 22/2024

The Hellenic Data Protection Authority convened, at the invitation of its President, in a meeting at its headquarters, on 16-07-2024, 30-07-2024, and 05-08-2024, in order to examine the case referred to in the background of this document. Present at the meeting were the President of the Authority, Konstantinos Menoudakos, the regular members Spyridon Vlachopoulos and Konstantinos Lamprinouidakis, as rapporteurs, and the regular members Aikaterini Iliadou, Christos Kalloniatis, and Grigorios Tsolias, as well as the alternate member Nikolaos Libos, substituting for the regular member Charalambos Anthopoulos, who, although duly summoned in writing, did not attend due to an impediment. Present, without voting rights, were the expert scientists - auditors, Georgia Panagopoulou, Georgios Rousopoulos, and Charis Symeonidou, as assistant rapporteurs, and Georgia Palaiologou, an employee of the administrative affairs department of the Authority, as secretary.

The Authority took into account the following:

BACKGROUND

By Decision 16/2024 of the Plenary of the Authority, sanctions were imposed on the Ministry of Interior and the MEP A.M. Asimakopoulou, for the violations identified in relation to the leak of a file of personal data of expatriate Greeks and its use for political communication purposes. At the same time, the issuance of a decision regarding the possible liability of the political party "New Democracy" (ND), the former Secretary of Expatriates of the same party, Nikos Theodoropoulos, and any other persons was postponed, due to the submission of new evidence by Mr. Theodoropoulos, after the hearing and the submission of memoranda, from the content of which the need for further investigation of the claims made therein arose. Specifically, Mr. Theodoropoulos submitted his sworn statement No. ... (with Authority protocol No.: G/EIS/4499/22-05-202) before Notary A, in which he declared under oath the following: a. that he never received from any associate of the former Secretary General of the Ministry of Interior (YPES), Michalis Stavrianoudakis, the electoral rolls file, b. that he never received from a former or current official of the Ministry of Interior, the electoral rolls file of expatriates for 2023, and c. that the person from whom he received the electoral rolls on 23-06-2023, at 17:05 via forwarded WhatsApp message, was and remains an official of the Central Administration of the party, based on the latest Statute of the ND, a responsible official who had access to the electoral rolls for the national elections of May and June 2023. Subsequently, the Authority, with document G/EXE/1536/31-05-2024, forwarded the above sworn statement to the ND for its views, setting a deadline until 13/6/2024. With request G/EIS/5210/14-06-2024, the ND requested an extension of the aforementioned deadline by five (5) working days, citing the fact that, as it stated, new external evidence had arisen and come to its knowledge, the evaluation of which it was objectively unable to respond to. In response, with document G/EXE/1662/14-06-2024, the Authority accepted the request and extended the deadline for the ND to provide its views until 21/6/2024. At the same time, Mr. Theodoropoulos submitted request G/EIS/5259/17-06-2024 to be notified of the ND's response.

With its response document G/EIS/5435/25-06-2024, the ND initially reiterated the main positions included in its memorandum dated 13-05-2024 (see Decision 16/2024) and particularly that the list of expatriates circulated via WhatsApp was never available to the party nor transmitted by it. Furthermore, it clarified in its memorandum dated 13-05-2024 that it had included the evaluation of Mr. Theodoropoulos's oral testimony on 29-04-2024 regarding how the electoral rolls had come to him, as subsequently expressed in his sworn statement on 22-05-2024, which was submitted as new evidence in the case, which the ND characterized as inadmissible for evaluation and as invoked beyond the

common deadline for submitting a memorandum, which functioned as a distraction. Furthermore, the ND stated that on 12-06-2024 at 23:25, it received new information from Mr. Theodoropoulos, via an email that was communicated to officials and the party's attorneys, indicating a specific person as involved in the process of sending the electoral rolls of expatriates to him via WhatsApp. Specifically, as emerged from the evidence submitted by the ND, in his email dated 12-06-2024 to the Data Protection Officer (DPO) of the ND, which was submitted to the Authority, Mr. Theodoropoulos attached a photo depicting the full phone number of the sender of the file via WhatsApp and stated, among other things, that the sender was and remains an official of the Central Administration of the Party as the Organizational Secretary of the Party and Crisis Management Officer. According to the ND, the depicted number of the sender of the file via WhatsApp belongs to Menios Koromilas, Organizational Secretary of Local Government and Crisis Management, who was appointed to this position in May 2022. As the ND stated, after receiving the above message, it immediately contacted Menios Koromilas by phone, and subsequently via email on 17/6/2024, in order to request a detailed report on the above. At the same time, the IT Department of the ND conducted a check on the party's file server to search for usage footprints or electronic correspondence from Mr. Koromilas related to the circulation of the contested files, as well as an internal audit of Mr. Koromilas's actions on the party's network, which...

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which did not yield any evidence regarding the investigated incidents, while the user account ...@nd.gr was immediately deactivated.

In his response dated 20-06-2024 via email to the Data Protection Authority (DPA) and the party's attorneys, which is quoted verbatim in the response of ND, Menios Koromilas stated, among other things, that in a phone conversation, the then General Secretary of the Ministry of Interior, Mr. Michalis Stavrianoudakis, asked him to forward to Mr. Theodoropoulos a file that a collaborator would send him via WhatsApp, that he forwarded the Excel file, which was sent to him via WhatsApp from an unknown number, to Mr. Theodoropoulos without having any knowledge of the content of the file or its potential use, and that due to his party affiliation, he had never sought access to electoral rolls or any personal data of citizens.

ND, in its response to the Authority, stated, among other things, that Menios Koromilas had a user code for a computer and the party's domain since 2017, that his computer access account had been deactivated since 16-10-2020 due to non-use, without a request for reactivation in 2022, that the aforementioned Secretary never submitted a request to the IT Department for the transmission of member data or electoral rolls, that the data of electoral rolls transmitted legally to the party do not include contact details, and that each official and collaborator of the party bears exclusive responsibility for their personal devices and the data stored on them, while the party has no authority or competence to control or intervene in the data of their private/personal electronic devices.

Following the above, with the numbered protocol G/EXE/1748, 1750, 1751, and 1754/26-06-2024 summonses, the Authority summoned the involved parties New Democracy, Michalis Stavrianoudakis, Nikos Theodoropoulos, and Menios Koromilas, respectively, to a hearing before the Plenary at the Authority's headquarters on 16-07-2024 at 10:00 a.m. In the same documents, the Authority transmitted to the involved parties the above G/EIS/5435/25-06-2024 document of opinions from New Democracy.

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During the hearing on 16-07-2024, the following individuals appeared, who had been notified by the summoned parties to the Authority:

- 1) On behalf of New Democracy, the lawyers Panagiota Moschandreu (A.M. ...) and Vasileios Gakopoulos (A.M. ...) and Ioannis Papaioannou, Deputy Director of IT
- 2) Nikos Theodoropoulos, with his attorneys, Leonidas Kotsalis (A.M. ...), Alexis Stefanakis (A.M. ...), Vasileios Psyha (A.M. ...), Roussa Tsoukalas (A.M. ...), and Konstantinos Kotsalis (A.M. ...)
- 3) On behalf of B, his attorneys Ioanna Saketou (A.M. ...) and Ioanna Lagoumidou (A.M. ...)
- 4) On behalf of Michalis Stavrianoudakis, his attorney, Polyxeni Bovoli (A.M. ...).

During the session, the parties presented their claims and were given a deadline for a memorandum until Friday, 26-07-2024. Subsequently, Michalis Stavrianoudakis submitted the G/EIS/5960/16-07-2024 memorandum, Menios Koromilas submitted the G/EIS/6199/25-07-2024 memorandum, New Democracy submitted the G/EIS/6216/26-07-2024 memorandum with the relevant documents (1-12), and Nikos Theodoropoulos submitted the G/EIS/5967/16-07-2024, G/EIS/5980/17-07-2024, and G/EIS/6191/25-07-2024 documents and the G/EIS/6235/29-07-2024 memorandum with the attached documents. Specifically, the following were supported by the aforementioned:

New Democracy refers verbatim to its written opinions dated 29-03-2024, its memorandum dated 13-05-2024, and its written opinions dated 21-06-2024, to which it refers to avoid repetition. Regarding the technical and organizational security measures it implements as the data controller to limit access and ensure the security of data and information, it provides and invokes relevant documentation and describes the technical measures in detail. Among other things, ND states that since 2020, it has made a total of 1034 transmissions to officials and candidates from the online platform and the official domain and email of the party, and 15 total transmissions specifically to the Secretariat of Greeks Abroad following...

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requests from June 2021 to November 2023 and in 3 total submissions to Ms. Asimakopoulou following requests from December 2021 to September 2023, that 27 training seminars have been conducted aimed at the staff and executives of the party and 9 drafted training presentations on the policy for processing personal data, that no violation or leak of personal data has been identified or reported from the implementation of these specific measures. Additionally, it submits the confidentiality agreements of the executives and other associated individuals with the party. The submitted confidentiality agreement of the Secretaries includes terms regarding the maintenance of confidential information that becomes known to the Secretaries (Recipients of information) in the course of their role, including the agreement itself, and the recipient's commitment to use the Confidential Information solely for the purpose of their work and activities related to the party and not to disclose this information in any way to third parties for a period of "10 years after the knowledge of each Confidential Information and even after the loss of the role for any reason." Specifically regarding the claims of Mr. Theodoropoulos, the ND party argues that the former Secretary of Overseas did not submit a request for the provision of electoral rolls, as such is not included in the submitted requests, that the claim that there was a general directive for the Secretaries to address Mr. Koromilas regarding file matters is not substantiated and does not correspond to reality, that although communication in daily life among party collaborators via messaging applications is not prohibited, it does not emerge that personal data files were circulated via WhatsApp, let alone electoral rolls with contact details, that there is no substantiation of a connection of the party with the 5-6 hour delay between his meeting with Ms. Asimakopoulou and the sending of the file to her. Furthermore, it argues that both the party's Statute and the Regulation for Greeks Abroad do not include the competence of the Secretary to maintain a file of overseas members, while the Secretary of Diaspora is obliged, at least once a year, to update the details of the executives of the

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Foreign Organizations with which he is in a functional relationship, sending them to the IT Department. The last relevant reminder from the IT Department in this case took place on 10-11-2023 (ref. 9), while on 20-11-2023, an invitation was sent from the office of the General Director via the IT Department to all Secretaries for a meeting on the topic of "Updating Lists." The ND party argues that the above explains why the IT Department referred Ms. Asimakopoulou, as it should have, when she submitted her request on 22-01-2024 to the competent Diaspora Secretariat. The ND party further argues that both Ms. Asimakopoulou as a Member of the European Parliament and Mr. Theodoropoulos, as Secretary, were aware of the data transmission process, as the former has followed it four times and the latter fifteen times, they have attended two relevant seminars, and they know that no transmission or disclosure is allowed to take place via platforms or other means and that the party had absolutely no

connection with the circulated file, as it cannot monitor their mobile phones nor prevent their personal communications. It is emphasized that Ms. Asimakopoulou's role as the ND party's Spokesperson in the European Parliament does not grant her the authority to maintain electoral rolls of overseas voters, while Mr. Theodoropoulos's role as a designated representative in the Special Interparty Committee of Article 2 paragraph 6 of Law 4648/2019 is not related to the circulation of the file. Furthermore, regarding Mr. Koromilas, the ND party points out that, until his resignation on 20-06-2024 (which it submits as Ref. 11), he served as Organizational Secretary, performing the duties of assistant to the Secretary of Local Government and Crisis Management and had no other responsibilities, hence the use of the @nd.gr email was limited. In conclusion, the ND party denies its involvement as the data controller regarding the forwarding via WhatsApp of the disputed file to Ms. Asimakopoulou, stating that this forwarding cannot be attributed to the ND party and that even in the hypothetical case that an irregular action could take place for the benefit of an organization, even if well-intentioned and unbeknownst to the organization, it is impossible for this to entail its liability.

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Aristodemos (Menios) Koromilas, both through his representatives during the hearing and with his memorandum, initially states that he has been a member of the New Democracy (ND) party since his student years and that from May 2022, in the context of his involvement with the party, he held the position of Organizational Secretary for Local Government and Crisis Management until June 20, 2024, when he resigned for reasons of political sensitivity, submitting a relevant letter which he presents. He further states that during the period from January to June 2023, while holding the aforementioned position, he collaborated with the then Secretary General of the Ministry of Interior, Mr. Michalis Stavrianoudakis, from whom, as he claims, he received a phone call on June 23, 2023, during which he was asked to forward to Mr. Theodoropoulos a file that a collaborator would send him via WhatsApp, and that he forwarded to Mr. Theodoropoulos the file that was sent to him from an unknown number without knowing its content or its potential use and without it being saved on his computer or in his email address at ND. He also claims that he does not possess the contentious file because he changed his mobile phone in the meantime and that due to his party affiliation, he neither had nor ever sought access to electoral rolls or personal data of citizens, nor did his responsibilities have any relation to the subject of the Hellenism of the Diaspora, and he requests that the case be archived concerning him.

Michalis Stavrianoudakis, former Secretary General of the Ministry of Interior, both through his attorney during the hearing and with his memorandum, initially reiterates that on March 15, 2024, he submitted his resignation for reasons of political sensitivity, taking political responsibility and not because he bore any form of fault or involvement in the case, that as the political head of the Elections Directorate which had the relevant authority, the only information he received was statistical in nature and anonymized numerical data, intended for use in service meetings, and that he never gave an order or permitted the transmission of these files to unauthorized persons or their unlawful processing. Among other things, he states that he is not a technician to perceive the existence of a security gap, he did not give an order for these files to be distributed illegally, he could not control every employee's actions, and he was not aware of nor had he noticed any leak. Regarding Mr. Koromilas's claims from June 20, 2024 (via email to ND), of which he was informed on June 26, 2024, by the Authority, he emphasizes that they were raised very late, after more than three months, despite the extensive publicity the case received and although on June 13, 2024, he claimed ignorance. Mr. Stavrianoudakis completely denies that a phone conversation took place on June 23, 2023, with Mr. Koromilas, with whom he states he indeed collaborated, but exclusively on issues related to Local Government and never on matters concerning expatriates, while he emphasizes that there was no hierarchical relationship between them that would allow him to suggest or give orders for actions, let alone to suggest the transmission of files to anyone. Furthermore, he points out that no involvement of his collaborator was proven, and that the transmission of the electoral roll occurred at a time when no communication with voters was permitted, thus the purpose of such transmission does not arise. Finally, he emphasizes that even if it were to be assumed that the need to transmit any file to Mr. Theodoropoulos, whose details were known to the Ministry of Interior due to his status as a member of the Interparty

Committee, arose, the transmission could have been done directly to him and there is no reason for Mr. Koromilas's mediation, concluding that there is no involvement nor is there any basis or evidence for any responsibility of his or his collaborator.

Nikos Theodoropoulos, both orally during the hearing and with his memorandum, states, among other things, that all of his actions were carried out to achieve the objectives set by New Democracy, as he received instructions to undertake the specific actions. He emphasizes that he does not know, nor was he obliged by his position to know how the contentious electoral rolls were obtained by ND. He claims that he requested the lists that ND lawfully possesses to analyze the electoral results, as "Exit Polls" are not conducted among Greeks abroad, so it is the

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The party is in a position to know how each social group voted, as it had done again, a month prior, specifically requesting the electoral register of Lithuania from the same person (Mr. Koromilas). Specifically, Mr. Theodoropoulos provides a screenshot depicting a WhatsApp message dated 26/5/2023 sent by himself, the same sender of the contentious Excel file (which was proven to belong to Mr. Koromilas), indicating that another Excel file titled "Voters May 21, 2023 in Lithuania.xls" was sent with the purpose of communicating with the voters of Lithuania to deregister from the Lithuanian register and be able to vote in Greece in June 2023.

Furthermore, regarding the purpose of sending the special electoral registers from abroad for June 2023, Mr. Theodoropoulos claims, among other things, that for the elections of June 2023, specifically on June 22, he was tasked with conducting a comparative analysis of the results from abroad for the upcoming elections and provides, as relevant, a screenshot from which it appears that the ND (New Democracy) was informed of the interim results on 24-6-2024, the day of elections for Greeks abroad. Specifically, a screenshot from a WhatsApp conversation in a ND group is provided, from which it appears that on 24/6/2023 he sent a file titled "ELECTIONS COMPARATIVE INTERIM.pdf". Therefore, as he argues, he lawfully received the electoral registers from the party organ that was de facto dealing with this matter, and subsequently conducted an analysis of the electoral results on behalf of the ND, which analysis was then sent to the competent bodies of the Party. He points out that the request to the ND for the provision of the electoral registers was made on the morning of June 23, and he received the special electoral registers from Mr. Koromilas on June 23 at 5:05 PM through the usual party procedure via WhatsApp. Mr. Theodoropoulos asserts that he never communicated with Mr. Stavrianoudakis to provide him with the electoral registers, as he believed that the party lawfully possessed them, part of which he had received 20 days prior from the same individual. He could not, nor was he obliged to know the origin of the electoral registers, as he claims that lawfully copies of these are provided to parties at any time and concludes that due to his position as a party organ, he had lawful access to the data of the electoral registers and for this reason cannot be considered a third party regarding the data contained therein, but rather a person who, under the direct supervision of the ND, as the data controller, was authorized to process the personal data contained in the electoral registers.

Furthermore, Mr. Theodoropoulos claims that the sending of the electoral registers to Ms. Asimakopoulou was done following a party directive, within the framework of her participation in the campaign to promote postal voting, not as a candidate of the ND or as a future candidate for the European Parliament, not for her personal promotion, but due to her party status as the spokesperson of the ND in the European Parliament and because she was the only member of the Eurogroup coming from the diaspora and had active relations with the expatriate Greek community. To substantiate this claim, he provides evidence of Ms. Asimakopoulou's participation in party activities for postal voting, which began on 19-01-2024, during the period when she received the file of the electoral registers and given that the law for postal voting was passed on 24-01-2024. According to Mr. Theodoropoulos, the party directive for Ms. Asimakopoulou to communicate with him regarding her party action to promote postal voting arises from a message from the IT Department, which referred her to the Secretary of the Diaspora for updated information, since if there had been no such directive, the IT Department would have contacted Mr. Theodoropoulos directly to inform Ms. Asimakopoulou whether the data was

updated. On the contrary, it appears that there was a directive to provide data directly from him to Ms. Asimakopoulou, as a party organ for the fulfillment of the party's objectives in a non-election period. Additionally, he argues that the time gap between his meeting with the MEP and the sending of the file is due to the fact that he reconfirmed the central directive "to provide her with whatever is requested in the context of promoting postal voting on behalf of the ND," and not for the purpose for which the data was ultimately used by Ms. Asimakopoulou.

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Finally, Mr. Theodoropoulos argues that the official procedure for granting electoral lists by the IT Directorate is never followed and is a "non-existent and dead process." As he states, the circulation of files and party communication via WhatsApp not only did not surprise him but was a usual party procedure. He mentions that this is evidenced by the documents submitted, specifically from the memorandum of the ND, according to which "the access account to the computer of Mr. Menios Koromilas has been automatically deactivated due to non-use, on 16/10/2020. The last use (login) occurred on 28/04/2018 at 1:53:36 pm, as shown in the following screenshot from the log files [...]." Therefore, it follows, according to Mr. Theodoropoulos, that the competent bodies of the party knew that the ND servers were not actually being used, but that almost all files were exchanged via WhatsApp or through the personal emails of the party officials, which does not contradict either the statute or any other binding document of the party. Regarding the confidentiality agreement he signed as Secretary of the ND, he emphasizes that "the above document essentially concerns the publication of confidential information, of which I became aware during the performance of my duties and due to my position and not instructions or an agreement regarding the management of personal data. I also emphasize that we never received instructions on how to manage personal data. Even for sensitive party issues, the circulation of files and conversations was also done via the WhatsApp application. Therefore, I reasonably considered that what I received from Mr. Koromilas was not an illegal or irregular file, but electoral lists that were lawfully held by the ND, as a party represented in Parliament." Finally, he denies the claims of Mr. Koromilas, who limits himself to a general description and fails to mention the sending of the list from Lithuania that had preceded, and reiterates that he processed personal data as an official on behalf of the ND, for purposes set by the party, thus he is the data controller and requests his acquittal.

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The Plenary of the Authority convened to issue a decision on the examined case on 30-07-2024 and adjourned its meeting until 05-08-2024 in order to continue the deliberation. On 31-07-2024, after the deadline for submitting memoranda and documents had passed, Mr. Theodoropoulos submitted with reference number G/EIS/6299/31-07-2024 his supplementary document, the responsible statement dated 31-07-2024 from Ms. B, a party official of the ND and ..., digitally signed via gov.gr, in which it is stated, among other things, that "[...] Nikos Theodoropoulos sent the said file of electoral lists of overseas voters to the Press Representative of the ND's Eurogroup, Ms. Anna-Michel Asimakopoulou, following the above party order and direction, in the context of his duties as Secretary of Overseas Greeks." Subsequently, on 02-08-2024, at a time when the set deadline for submitting memoranda and documents had passed, Mr. N. Theodoropoulos submitted, among other things, the following supplementary new elements:

- The email dated 02-08-2024 to the ND's DPO (G/EIS/6366/02-08-2024), in which he requests to proceed in writing with the lifting, without conditions or deadlines, of the Confidentiality Maintenance, which binds him regarding information and documents he received during the performance of his duties as Secretary of Greeks in the Diaspora of the ND, in order to declare both to himself and to the Authority that the party will not take any judicial or extrajudicial action against him due to the submission of confidential documents and information, so that he can provide necessary and irrefutable evidence, as he states, that proves his claims. Additionally, in the same message, he calls on the party to notify the Authority of the document he has personally signed as an NDA (Non-disclosure Agreement) and not a template given to lower-ranking officials or volunteers.
- His responsible statement dated 02-08-2024 (G/EIS/6364/02-08-2024), digitally signed via gov.gr,

according to which "Regarding the case of Ms. Asimakopoulou and the file of electoral lists, I always acted within the framework of the above central order and party direction. As a sole condition, I need the DPA to request itself and obtain the lifting of the confidentiality maintenance from New Democracy, in relation to the person..."

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to me, as deemed necessary in order to provide additional evidence, irrefutable proof, and personal testimonies for my exoneration from the case, if the evidence I have submitted to the Authority so far is considered insufficient."

- The email sent on 09-06-2024 at 10:54 p.m. to the Data Protection Officer of the New Democracy party (G/EIS/6365/02-08-2024), in which he claimed that in the case concerning the trafficking of electoral lists containing emails, he was forced to resign on 15-03-2024 and was subsequently presented as the main culprit, with statements to the media that were misleading.

- Depiction of the electronic communications dated 24-06-2023 and 25-06-2023 via WhatsApp with ... of the New Democracy party, Mr. G (G/EIS/6363/02-08-2024), in which the latter appears to write to him, "Send me a corresponding photo with those we are winning," and Mr. Theodoropoulos appears to send a table with comparative data of voters between the May and June 2023 elections in various cities abroad, statistical data on the participation of overseas voters in the two elections, and an Excel file titled "Diaspora-Election results." As Mr. Theodoropoulos states, "I am sending part of the statistical analyses that were conducted during the days of the June 2023 elections as well as the file with the election results (diaspora elections results) with the necessary comparison and statistical analysis," in order to determine whether he acted upon party orders or autonomously.

- The resignation email dated 15-03-2024 at 4:17 p.m. (G/EIS/6362/02-08-2024) in which he explicitly states that he declares himself innocent and will prove wherever necessary that he has no responsibility or involvement in this case.

Regarding the submission to the Authority of these new pieces of evidence and documents, it is noted that their submission is done by the parties, particularly by Mr. Theodoropoulos, in a fragmented manner and with a practice that has led to delays in the issuance of a decision by the Authority. In light of the above, and to avoid the risk of liability regarding the breach of the obligation to cooperate with the Authority that burdens the governed under Law 4624/2019 (see particularly Article 15) and the General Data Protection Regulation [Regulation (EU) 2016/679], a relevant note is made to those summoned for a hearing for the timely and within the framework of the prescribed procedure submission of available evidence.

The Authority, after examining the contents of the file and having heard the presenters and clarifications from the assistants to the presenters, after thorough discussion

CONSIDERED IN ACCORDANCE WITH THE LAW

and decides

The new evidence cited and submitted on 31-07-2024 and 02-08-2024 by Mr. Theodoropoulos, after the expiration of the deadline set by the Authority, can, within the framework of the ex officio control and after the involved parties in the case have been informed of this evidence, be taken into account and evaluated regarding their validity or not and their influence or not on the judgment of the case, as the Authority had accepted in a corresponding case with its decision No. 16/2024.

From the content of the new evidence, the need for further investigation of the claims made therein arises, in light of the conflicting claims of the parties under examination regarding whether the processing of personal data in question took place to achieve purposes and means determined by the New Democracy party through its officials in the exercise of their duties or by the latter as natural persons autonomously for their own purposes. Specifically, in the responsible statement of Ms. B, it is claimed that Mr. Theodoropoulos acted upon party orders and guidance in the context of his duties as Secretary of Overseas Citizens, without naming specific individuals.

Additionally, the electronic communications dated 24-06-2023 and 25-06-2023 of Mr. N.

Theodoropoulos via WhatsApp with ... of the New Democracy party, Mr. G, refer to the analysis of the election results of June 2023.

Conversely, the New Democracy party, in its memorandum No. G/EIS/6216/26-07-2024, denies any contrary claim and argues that it cannot be attributed the status of data controller.

Finally, the New Democracy party has submitted to the Authority a standard Confidentiality and Non-Disclosure Agreement, but not a copy of the original document signed with Mr. N. Theodoropoulos.

Because in light of the above, the collection of new evidence is required.

Because according to Article 15 paragraph 1 of Law 4624/2019, no kind of confidentiality can be opposed before the Authority when it exercises its power to obtain access from the data controller to all personal data, and in this case, to the personal data included in the aforementioned Confidentiality and Non-Disclosure Agreement (NDA).

Because for these reasons, the issuance of the decision should be postponed in order to gather more substantial evidence.

DISPOSITIVE

The Authority decides to postpone the issuance of the decision in order to:

1. To present to the other parties the new evidence submitted by Mr. Theodoropoulos.
2. To summon again for a hearing the New Democracy party as well as Mr. Nikos Theodoropoulos, Mr. Michalis Stavrianoudakis, and Mr. Menios Koromilas.
3. To summon Ms. B and Mr. G to the said hearing in person to provide information.
4. For both the New Democracy party and Mr. Theodoropoulos to send a copy of the original Confidentiality and Non-Disclosure Agreement they have signed prior to the above hearing.

The President

The Secretary
Konstantinos Menoudakos
Georgia Palaiologou